

Court No. - 4

Case :- WRIT - C No. - 3555 of 2020

Petitioner :- Subhash Chandra

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Lal Chandra Yadav

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Bala Krishna Narayana,J.

Hon'ble Ravi Nath Tilhari,J.

Heard learned counsel for the petitioner, learned Standing Counsel for the respondent no. 1 and Sri Baleshwar Chaturvedi, learned counsel for the respondent nos. 2 to 5.

This writ petition has been filed by the petitioner with the following prayer to :-

- 1. issue a writ, order or direction in the nature of certiorari quashing the recovery certificate dated 16.09.2019 passed by the respondent no. 4 (Annexure No. 6 to the writ petition).*
- 2. issue a writ, order or direction in the nature of mandamus commanding the respondents to provide the petitioner as benefits under one time settlement scheme and his new connection be connected after depositing of first instalment as fixed by this Hon'ble Court.*
- 3. issue a writ, order or direction in the nature of mandamus commanding the respondents to amend the actual amount of electricity bill and the easy instalment may be fixed for depositing the outstanding amount dues against him after exempting overdraft amount under one time settlement scheme.*
- 4. issue any other writ, order or direction which this Hon'ble Court as may deem fit and proper in the facts and circumstances of the case.*
- 5. award cost of the writ petition to the petitioner.*

Learned counsel for the petitioner has submitted that the petitioner is ready to pay the entire amount due against him but his current financial condition is not such so as to enable him to pay the amount due against him which is sought to be recovered at one stroke. However, he is ready and willing to deposit the entire amount mentioned in the impugned recovery certificate dated 16.09.2019 (Annexure No. 6 to the writ petition) in such instalments as this Hon'ble court may deem fit and proper.

Sri Baleshwar Chaturvedi, learned counsel appearing for the respondent nos. 2 to 5 submitted that in case the petitioner is willing to deposit the entire amount

demand, he can file a representation before the respondent no. 4 u/s 6.14 of Uttar Pradesh Electricity Supply Code, 2005.

In view of the above, without expressing any opinion on the merits of the case, we dispose of this writ petition with the liberty to the petitioner to file a representation before the respondent no. 4 u/s 6.14 of Uttar Pradesh Electricity Supply Code, 2005 raising all the grounds which have been taken by him in this writ petition within a period of three weeks along with the certified copy of this order.

In case any such representation is filed by the petitioner before the respondent no. 4 within the time indicated hereinabove, he shall consider and decide the same strictly in accordance with law by a speaking and reasoned order as expeditiously as possible preferably within a further period of three weeks.

For a period of six weeks from today or till the petitioner's representation is decided, whichever is earlier, no coercive action shall be taken against the petitioner pursuant to the impugned recovery certificate dated 16.09.2019 (Annexure No. 6 to the writ petition).

Order Date :- 6.2.2020

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